

KAVANAUGH, J., concurring in part

Fourteenth Amendment incorporates the Sixth Amendment jury trial right against the States. See *Duncan v. Louisiana*, 391 U.S. 145, 149 (1968); *id.*, at 166 (Black, J., concurring); see also *Malloy*, 378 U.S., at 10–11; see generally *Timbs v. Indiana*, 586 U.S. 146 (2019); *McDonald v. Chicago*, 561 U.S. 742 (2010). When *Apodaca* was decided, it was already an outlier in the Court’s jurisprudence, and over time it has become even more of an outlier. As the Court today persuasively explains, the original meaning of the Sixth and Fourteenth Amendments and this Court’s two lines of decisions—the Sixth Amendment jury cases and the Fourteenth Amendment incorporation cases—overwhelmingly demonstrate that *Apodaca*’s holding is egregiously wrong.⁶

⁶Notwithstanding the splintered 4–1–4 decision in *Apodaca*, its bottom-line result carried precedential force. In the American system of *stare decisis*, the result and the reasoning each independently have precedential force, and courts are therefore bound to follow both the result and the reasoning of a prior decision. See *Seminole Tribe of Fla. v. Florida*, 517 U.S. 44, 67 (1996); *Randall v. Sorrell*, 548 U.S. 230, 243 (2006) (opinion of BREYER, J.); *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U.S. 573, 668 (1989) (Kennedy, J., concurring in judgment in part and dissenting in part). The result of *Apodaca* was that state criminal juries need not be unanimous. That precedential result has been followed by this Court and the other federal and state courts for the last 48 years. To be sure, *Apodaca* had no majority opinion. When the Court’s decision is splintered, courts follow the result, and they also follow the reasoning or standards set forth in the opinion constituting the “narrowest grounds” of the Justices in the majority. See *Marks v. United States*, 430 U.S. 188, 193 (1977). That *Marks* rule is ordinarily commonsensical to apply and usually means that courts in essence heed the opinion that occupies the middle-ground position between (i) the broadest opinion among the Justices in the majority and (ii) the dissenting opinion. See *United States v. Duvall*, 740 F.3d 604, 610–611 (CA DC 2013) (Kavanaugh, J., concurring in denial of rehearing en banc). On very rare occasions, as in *Apodaca*, it can be difficult to discern which opinion’s reasoning has precedential effect under *Marks*. See also *Nichols v. United States*, 511 U.S. 738, 745–746 (1994) (analyzing *Baldasar v. Illinois*, 446 U.S. 222 (1980) (*per curiam*)). But even when that happens,

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Second, *Apodaca* causes significant negative consequences. It is true that *Apodaca* is workable. But *Apodaca* sanctions the conviction at trial or by guilty plea of some defendants who might not be convicted under the proper constitutional rule (although exactly how many is of course unknowable). That consequence has traditionally supplied some support for overruling an egregiously wrong criminal-procedure precedent. See generally *Malloy*, 378 U. S. 1.

In addition, and significant to my analysis of this case, the origins and effects of the non-unanimous jury rule strongly support overruling *Apodaca*. Louisiana achieved statehood in 1812. And throughout most of the 1800s, the State required unanimous juries in criminal cases. But at its 1898 state constitutional convention, Louisiana enshrined non-unanimous juries into the state constitution. Why the change? The State wanted to diminish the influence of black jurors, who had won the right to serve on juries through the Fourteenth Amendment in 1868 and the Civil Rights Act of 1875. See *Strauder v. West Virginia*, 100 U. S. 303, 308–310 (1880); T. Aiello, *Jim Crow’s Last Stand: Non-unanimous Criminal Jury Verdicts in Louisiana* 16, 19 (2015). Coming on the heels of the State’s 1896 victory in *Plessy v. Ferguson*, 163 U. S. 537, the 1898 constitutional convention expressly sought to “establish the supremacy of the white race.” Semmes, Chairman of the Committee on the Judiciary, Address at the Louisiana Constitutional Convention in 1898, in *Official Journal of the Proceedings of the Constitutional Convention of the State of Louisiana* 375 (H. Hearsey ed. 1898). And the convention approved non-unanimous juries as one pillar of a comprehensive and brutal program of

the *result* of the decision still constitutes a binding precedent for the federal and state courts, and for this Court, unless and until it is overruled by this Court. As I read the Court’s various opinions today, six Justices treat the result in *Apodaca* as a precedent for purposes of *stare decisis* analysis. A different group of six Justices concludes that *Apodaca* should be and is overruled.

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racist Jim Crow measures against African-Americans, especially in voting and jury service. See Aiello, *supra*, at 16–26; Frampton, The Jim Crow Jury, 71 Vand. L. Rev. 1593, 1620 (2018).⁷

In light of the racist origins of the non-unanimous jury, it is no surprise that non-unanimous juries can make a difference in practice, especially in cases involving black defendants, victims, or jurors. After all, that was the whole point of adopting the non-unanimous jury requirement in the first place. And the math has not changed. Then and now, non-unanimous juries can silence the voices and negate the votes of black jurors, especially in cases with black defendants or black victims, and only one or two black jurors. The 10 jurors “can simply ignore the views of their fellow panel members of a different race or class.” *Johnson v. Louisiana*, 406 U. S. 356, 397 (1972) (Stewart, J., dissenting). That reality—and the resulting perception of unfairness and racial bias—can undermine confidence in and respect for the criminal justice system. The non-unanimous jury operates much the same as the unfettered peremptory challenge, a practice that for many decades likewise functioned as an engine of discrimination against black defendants, victims, and jurors. In effect, the non-unanimous jury allows backdoor and unreviewable peremptory strikes against up to 2 of the 12 jurors.

In its 1986 decision in *Batson v. Kentucky*, the Court recognized the pervasive racial discrimination woven into the traditional system of unfettered peremptory challenges. See 476 U. S., at 85–89, 91. The Court therefore overruled a prior decision, *Swain v. Alabama*, 380 U. S. 202 (1965), that

⁷ Oregon adopted the non-unanimous jury practice in 1934—one manifestation of the extensive 19th- and early 20th-century history of racist and anti-Semitic sentiment in that State. See Kaplan & Saack, *Overturning Apodaca v. Oregon Should Be Easy: Nonunanimous Jury Verdicts in Criminal Cases Undermine the Credibility of Our Justice System*, 95 Ore. L. Rev. 1, 3, 43–51 (2016); Mooney, *Remembering 1857*, 87 Ore. L. Rev. 731, 778, n. 174 (2008).

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had allowed those challenges. See generally *Flowers v. Mississippi*, 588 U. S. 284 (2019).

In my view, *Apodaca* warrants the same fate as *Swain*. After all, the “requirements of unanimity and impartial selection thus complement each other in ensuring the fair performance of the vital functions of a criminal court jury.” *Johnson*, 406 U. S., at 398 (Stewart, J., dissenting). And as Justice Thurgood Marshall forcefully explained in dissent in *Apodaca*, to “fence out a dissenting juror fences out a voice from the community, and undermines the principle on which our whole notion of the jury now rests.” *Johnson*, 406 U. S., at 402 (Marshall, J., dissenting in both *Johnson* and *Apodaca*).

To be clear, one could advocate for and justify a non-unanimous jury rule by resort to neutral and legitimate principles. England has employed non-unanimous juries, and various legal organizations in the United States have at times championed non-unanimous juries. See, e. g., Juries Act 1974, ch. 23, § 17 (Eng.); ABA Project on Standards for Criminal Justice, Trial By Jury § 1.1, p. 7 (App. Draft 1968); ALI, Code of Criminal Procedure § 355, p. 99 (1930). And Louisiana’s modern policy decision to retain non-unanimous juries—as distinct from its original decision in the late 1800s to adopt non-unanimous juries—may have been motivated by neutral principles (or just by inertia).

But the question at this point is not whether the Constitution prohibits non-unanimous juries. It does. Rather, the disputed question here is whether to overrule an erroneous constitutional precedent that allowed non-unanimous juries. And on that question—the question whether to overrule—the Jim Crow origins and racially discriminatory effects (and the perception thereof) of non-unanimous juries in Louisiana and Oregon should matter and should count heavily in favor of overruling, in my respectful view. After all, the non-unanimous jury “is today the last of Louisiana’s Jim Crow laws.” Aiello, *supra*, at 63. And this Court has empha-

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sized time and again the “imperative to purge racial prejudice from the administration of justice” generally and from the jury system in particular. *Pena-Rodriguez v. Colorado*, 580 U.S. 206, 221–223 (2017) (collecting cases).

To state the point in simple terms: Why stick by an erroneous precedent that is egregiously wrong as a matter of constitutional law, that allows convictions of some who would not be convicted under the proper constitutional rule, and that tolerates and reinforces a practice that is thoroughly racist in its origins and has continuing racially discriminatory effects?

Third, overruling *Apodaca* would not unduly upset reliance interests. Only Louisiana and Oregon employ non-unanimous juries in criminal cases. To be sure, in those two States, the Court’s decision today will invalidate some non-unanimous convictions where the issue is preserved and the case is still on direct review. But that consequence almost always ensues when a criminal-procedure precedent that favors the government is overruled. See *Ring*, 536 U.S. 584; *Batson*, 476 U.S. 79. And here, at least, I would “count that a small price to pay for the uprooting of this weed.” *Hubbard*, 514 U.S., at 717 (Scalia, J., concurring in part and concurring in judgment).

Except for the effects on that limited class of direct-review cases, it will be relatively easy going forward for Louisiana and Oregon to transition to the unanimous jury rule that the other 48 States and the federal courts use. Indeed, in 2018, Louisiana amended its constitution to require jury unanimity in criminal trials for crimes committed on or after January 1, 2019, meaning that the transition is already well under way in Louisiana.

Importantly, moreover, this Court applies a separate non-retroactivity doctrine to mitigate the disruptive effects of overrulings in criminal cases. Under the Court’s precedents, new constitutional rules apply on direct review, but generally do not apply retroactively on habeas corpus review.

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See *Teague v. Lane*, 489 U. S. 288, 311 (1989) (plurality opinion); *Griffith v. Kentucky*, 479 U. S. 314, 328 (1987). *Teague* recognizes only two exceptions to that general habeas non-retroactivity principle: “if (1) the rule is substantive or (2) the rule is a ‘watershed rul[e] of criminal procedure’ implicating the fundamental fairness and accuracy of the criminal proceeding.” *Whorton v. Bockting*, 549 U. S. 406, 416 (2007) (internal quotation marks omitted). The new rule announced today—namely, that state criminal juries must be unanimous—does not fall within either of those two narrow *Teague* exceptions and therefore, as a matter of federal law, should not apply retroactively on habeas corpus review.

The first *Teague* exception does not apply because today’s new rule is procedural, not substantive: It affects “only the manner of determining the defendant’s culpability.” *Schriro v. Summerlin*, 542 U. S. 348, 353 (2004).

The second *Teague* exception does not apply because today’s new rule, while undoubtedly important, is not a “watershed” procedural rule. This Court has flatly stated that “it is unlikely that any such rules” have “yet to emerge.” *Whorton*, 549 U. S., at 417 (internal quotation marks omitted). In “the years since *Teague*, we have rejected every claim that a new rule satisfied the requirements for watershed status.” *Id.*, at 418, 421 (rejecting retroactivity for *Crawford v. Washington*, 541 U. S. 36 (2004)); see, e. g., *Beard v. Banks*, 542 U. S. 406, 420 (2004) (rejecting retroactivity for *Mills v. Maryland*, 486 U. S. 367 (1988)); *Summerlin*, 542 U. S., at 358 (rejecting retroactivity for *Ring v. Arizona*, 536 U. S. 584 (2002)); *O’Dell v. Netherland*, 521 U. S. 151, 167–168 (1997) (rejecting retroactivity for *Simmons v. South Carolina*, 512 U. S. 154 (1994)); *Lambrix v. Singletary*, 520 U. S. 518, 539–540 (1997) (rejecting retroactivity for *Espinosa v. Florida*, 505 U. S. 1079 (1992) (*per curiam*)); *Sawyer v. Smith*, 497 U. S. 227, 241–245 (1990) (rejecting retroactivity for *Caldwell v. Mississippi*, 472 U. S. 320 (1985)); see also *Allen v. Hardy*, 478 U. S. 255, 261 (1986) (*per curiam*) (reject-

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ing retroactivity for *Batson v. Kentucky*, 476 U. S. 79 (1986)); *DeStefano v. Woods*, 392 U. S. 631, 635 (1968) (*per curiam*) (rejecting retroactivity for *Duncan*, 391 U. S. 145).

So assuming that the Court faithfully applies *Teague*, today's decision will not apply retroactively on federal habeas corpus review and will not disturb convictions that are final.⁸

In addition, as to ineffective-assistance-of-counsel claims, an attorney presumably would not have been deficient for failing to raise a constitutional jury-unanimity argument before today's decision—or at the very least, before the Court granted certiorari in this case. Before today, after all, this Court's precedents had repeatedly allowed non-unanimous juries in state criminal cases. In that situation, the Courts of Appeals have consistently held that an attorney is not ineffective for failing to anticipate or advocate for the overruling of a constitutional precedent of this Court. See, *e. g.*, *Walker v. United States*, 810 F. 3d 568, 577 (CA8 2016); *United States v. Smith*, 241 F. 3d 546, 548 (CA7 2001); *Honeycutt v. Mahoney*, 698 F. 2d 213, 216–217 (CA4 1983); see also *Steiner v. United States*, 940 F. 3d 1282, 1293 (CA11 2019) (*per curiam*); *Snider v. United States*, 908 F. 3d 183, 192 (CA6 2018); *Green v. Johnson*, 116 F. 3d 1115, 1125 (CA5 1997).

For those reasons, the reliance interests at stake in this case are not especially substantial, and they do not mandate adherence to *Apodaca*.⁹

⁸In *Allen v. Hardy*, 478 U. S. 255 (1986) (*per curiam*), this Court concluded—without briefing or oral argument—that *Batson* would not apply retroactively. Under the well-settled *Teague* principles, there should be no doubt that today's decision likewise will not apply retroactively on collateral review.

⁹JUSTICE ALITO's characteristically incisive dissent rests largely on his view of the States' reliance interests. My respectful disagreement with JUSTICE ALITO primarily boils down to our different assessments of those reliance interests—in particular, our different evaluations of how readily Louisiana and Oregon can adjust to an overruling of *Apodaca*.

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In sum, *Apodaca* is egregiously wrong, it has significant negative consequences, and overruling it would not unduly upset reliance interests. I therefore agree with the Court's decision to overrule *Apodaca*.¹⁰

JUSTICE THOMAS, concurring in the judgment.

I agree with the Court that petitioner Evangelisto Ramos' felony conviction by a nonunanimous jury was unconstitutional. I write separately because I would resolve this case based on the Court's longstanding view that the Sixth Amendment includes a protection against nonunanimous felony guilty verdicts, without undertaking a fresh analysis of the meaning of "trial . . . by an impartial jury." I also would make clear that this right applies against the States through the Privileges or Immunities Clause of the Fourteenth Amendment, not the Due Process Clause.

I

I begin with the parties' dispute as to whether the Sixth Amendment right to a trial by jury includes a protection against nonunanimous felony guilty verdicts. On this question, I do not write on a blank slate. As the Court acknowledges, our decisions have long recognized that unanimity is required. See *ante*, at 92. Because this interpretation is not demonstrably erroneous, I would resolve the Sixth Amendment question on that basis.

¹⁰ As noted above, I join the introduction and Parts I, II-A, III, and IV-B-1 of JUSTICE GORSUCH's opinion for the Court. The remainder of JUSTICE GORSUCH's opinion does not command a majority. That point is important with respect to Part IV-A, which only three Justices have joined. It appears that six Justices of the Court treat the result in *Apodaca* as a precedent and therefore do not subscribe to the analysis in Part IV-A of JUSTICE GORSUCH's opinion.

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A

This Court first decided that the Sixth Amendment protected a right to unanimity in *Thompson v. Utah*, 170 U. S. 343 (1898). The Court reasoned that Thompson, a Utah prisoner, was protected by the Sixth Amendment when Utah was still a Territory because “the right of trial by jury in suits at common law appl[ied] to the Territories of the United States.” *Id.*, at 346. The Court then stated that this right “made it impossible to deprive him of his liberty except by [a] unanimous verdict.” *Id.*, at 355; see also *id.*, at 351, 353.

The Court has repeatedly reaffirmed the Sixth Amendment’s unanimity requirement. In *Patton v. United States*, 281 U. S. 276 (1930), the Court stated that the Sixth Amendment protects the right “that the verdict should be unanimous,” *id.*, at 288. In *Andres v. United States*, 333 U. S. 740 (1948), the Court repeated that “[u]nanimity in jury verdicts is required” by the Sixth Amendment, *id.*, at 748. And in *Apodaca v. Oregon*, 406 U. S. 404 (1972), five Justices agreed that “the Sixth Amendment’s guarantee of trial by jury embraces a guarantee that the verdict of the jury must be unanimous,” *id.*, at 414 (Stewart, J., joined by Brennan and Marshall, JJ., dissenting); see also *Johnson v. Louisiana*, 406 U. S. 356, 371 (1972) (Powell, J., concurring) (explaining views in *Apodaca* and its companion case); *id.*, at 382–383 (Douglas, J., joined by Brennan and Marshall, JJ., dissenting) (same). We have accepted this interpretation of the Sixth Amendment in recent cases. See *Southern Union Co. v. United States*, 567 U. S. 343, 356 (2012); *Blakely v. Washington*, 542 U. S. 296, 301 (2004); *Apprendi v. New Jersey*, 530 U. S. 466, 477 (2000).

B

The question then becomes whether these decisions are entitled to *stare decisis* effect. As I have previously explained, “the Court’s typical formulation of the *stare decisis*

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standard does not comport with our judicial duty under Article III because it elevates demonstrably erroneous decisions—meaning decisions outside the realm of permissible interpretation—over the text of the Constitution and other duly enacted federal law.” *Gamble v. United States*, 587 U. S. 678, 711 (2019) (concurring opinion). There is considerable evidence that the phrase “trial . . . by . . . jury” in the Sixth Amendment was understood since the founding to require that a felony guilty verdict be unanimous. Because our precedents are thus not outside the realm of permissible interpretation, I will apply them.

1

Blackstone—“the preeminent authority on English law for the founding generation,” *Alden v. Maine*, 527 U. S. 706, 715 (1999)—wrote that no subject can “be affected either in his property, his liberty, or his person, but by the unanimous consent” of a jury, 3 W. Blackstone, *Commentaries on the Laws of England* 379 (1772); see also 4 *id.*, at 343. Another influential treatise author, Hale, wrote that “the law of England hath afforded the best method of trial, that is possible, . . . namely by a jury . . . all concurring in the same judgment.” 1 M. Hale, *Pleas of the Crown* 33 (1736) (emphasis deleted). Such views continued in scholarly works throughout the early Republic. See, *e. g.*, 2 J. Story, *Commentaries on the Constitution of the United States* § 777, p. 248 (1833); 6 N. Dane, *Digest of American Law*, ch. LXXXII, Art. 2, § 1, p. 226 (1824); 2 J. Wilson, *Works of the Honourable James Wilson* 349–350 (1804).

The uniform practice among the States was in accord. Despite isolated 17th-century colonial practices allowing non-unanimous juries, “unanimity became the accepted rule during the 18th century, as Americans became more familiar with the details of English common law and adopted those details in their own colonial legal systems.” *Apodaca*, *supra*, at 408, n. 3 (plurality opinion). In the founding era,

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six States explicitly mentioned unanimity in their constitutions. See Del. Declaration of Rights § 14 (1776); Md. Declaration of Rights, Art. XIX (1776); N. C. Declaration of Rights § IX (1776); Pa. Declaration of Rights, Art. IX (1776); Vt. Const., Art. XI (1786); Va. Declaration of Rights § 8 (1776). Four more States clearly referred to the common-law jury right, which included unanimity. Ky. Const., Art. XII, § 6 (1792); N. J. Const., Art. XXII (1776); N. Y. Const., Art. XLI (1777); S. C. Const., Art. IX, § 6 (1790). Some States did not explicitly refer to either the common law or unanimity. See, e. g., Ga. Const., Art. LXI (1777); Mass. Declaration of Rights, Art. XII (1780). But there is reason to believe that they nevertheless understood unanimity to be required. See, e. g., *Rouse v. State*, 4 Ga. 136, 147 (1848).

In light of the express language used in some State Constitutions, respondent Louisiana argues that the omission of an express unanimity requirement in the Sixth Amendment reflects a deliberate choice. This argument fails to establish that the Court's decisions are demonstrably erroneous. The House of Representatives passed a version of the amendment providing that "[t]he trial of all crimes . . . shall be by an impartial jury of freeholders of the vicinage, with the requisite of unanimity for conviction, of the right of challenge, and other accustomed requisites," 1 Annals of Cong. 435 (1789), but the final Amendment contained no reference to vicinage or unanimity. See Amdt. 6. I agree with Justice Harlan and the Court that "the meaning of this change is wholly speculative" and that there is "no concrete evidence" that the Senate rejected the requirement of unanimity. *Baldwin v. New York*, 399 U. S. 66, 123, n. 9 (1970) (Harlan, J., dissenting); see also *ante*, at 97–98; Letter from J. Madison to E. Pendleton (Sept. 14, 1789), in 1 Letters and Other Writings of James Madison 491 (1867). There is thus sufficient evidence to support this Court's prior interpretation that the Sixth Amendment right to a trial by jury requires unanimity.

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2

There is also considerable evidence that this understanding persisted up to the time of the Fourteenth Amendment's ratification. State courts, for example, continued to interpret the phrase "trial by jury" to require unanimity in felony guilty verdicts. The New Hampshire Superior Court of Judicature expounded on the point:

"The terms 'jury,' and 'trial by jury,' are, and for ages have been well known in the language of the law. They were used at the adoption of the constitution, and always, it is believed, before that time, and almost always since, in a single sense.

"A jury for the trial of a cause . . . must return their unanimous verdict upon the issue submitted to them.

"All the books of the law describe a trial jury substantially as we have stated it. And a 'trial by jury' is a trial by such a body, so constituted and conducted. So far as our knowledge extends, these expressions were used at the adoption of the constitution and always before, in these senses alone by all classes of writers and speakers." *Opinion of Justices*, 41 N. H. 550, 551–552 (1860).

Other state courts held the same view. The Missouri Supreme Court in 1860 called unanimity one of the "essential requisites in a jury trial," *Vaughn v. Scade*, 30 Mo. 600, 603, and the Ohio Supreme Court in 1853 called it one of "the essential and distinguishing features of the trial by jury, as known at common law, and generally, if not universally, adopted in this country," *Work v. State*, 2 Ohio St. 297, 306.

Treatises from the Reconstruction era likewise adopted this position. A leading work on criminal procedure explained that if a "statute authorizes [a jury] to find a verdict upon anything short of . . . unanimous consent," it "is void." 1 J. Bishop, *Criminal Procedure* §761, p. 532 (1866). A widely read treatise on constitutional law reiterated that

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“‘by a jury’ is generally understood to mean” a body that “must *unanimously* concur in the guilt of the accused before a conviction can be had.” G. Paschal, *The Constitution of the United States* 210 (1876) (capitalization omitted). And a volume on the jury trial was in agreement. See J. Proffatt, *Trial by Jury* § 77, p. 112 (1877).

* * *

Based on this evidence, the Court’s prior interpretation of the Sixth Amendment’s guarantee is not demonstrably erroneous. It is within the realm of permissible interpretations to say that “trial . . . by . . . jury” in that Amendment includes a protection against nonunanimous felony guilty verdicts.

II

The remaining question is whether that right is protected against the States. In my view, the Privileges or Immunities Clause provides this protection. I do not adhere to this Court’s decisions applying due process incorporation, including *Apodaca* and—it seems—the Court’s opinion in this case.

The Privileges or Immunities Clause provides that “[n]o State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States.” Amdt. 14, § 1. At the time of the Fourteenth Amendment’s ratification, “the terms ‘privileges’ and ‘immunities’ had an established meaning as synonyms for ‘rights.’” *McDonald v. Chicago*, 561 U. S. 742, 813 (2010) (THOMAS, J., concurring in part and concurring in judgment). “[T]he ratifying public understood the Privileges or Immunities Clause to protect constitutionally enumerated rights” against abridgment by the States. *Id.*, at 837. The Sixth Amendment right to a trial by jury is certainly a constitutionally enumerated right. See *Maxwell v. Dow*, 176 U. S. 581, 606–608 (1900) (Harlan, J., dissenting).

The Court, however, has made the Due Process Clause serve the function that the Privileges or Immunities Clause

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should serve. Although the Privileges or Immunities Clause grants “United States citizens a certain collection of rights—*i. e.*, privileges or immunities—attributable to that status,” the Court has interpreted the Clause “quite narrowly.” *McDonald*, 561 U. S., at 808 (opinion of THOMAS, J.). Perhaps to compensate for this limited view of the Privileges or Immunities Clause, it has incorporated individual rights against the States through the Due Process Clause. *Id.*, at 809.

Due process incorporation is a demonstrably erroneous interpretation of the Fourteenth Amendment. As I have explained before, “[t]he notion that a constitutional provision that guarantees only ‘process’ before a person is deprived of life, liberty, or property could define the substance of those rights strains credulity for even the most casual user of words.” *Id.*, at 811. The unreasonableness of this interpretation is underscored by the Court’s struggle to find a “guiding principle to distinguish ‘fundamental’ rights that warrant protection from nonfundamental rights that do not,” *ibid.*, as well as its many incorrect decisions based on this theory, see *Obergefell v. Hodges*, 576 U. S. 644 (2015); *Roe v. Wade*, 410 U. S. 113 (1973); *Dred Scott v. Sandford*, 19 How. 393 (1857).

I “decline to apply the legal fiction” of due process incorporation. *Timbs v. Indiana*, 586 U. S. 146, 159 (2019) (THOMAS, J., concurring in judgment) (internal quotation marks omitted). As a result, I part ways with the Court on both its affirmative argument about the Fourteenth Amendment and its treatment of *Apodaca*, in which five Justices agreed the Sixth Amendment included a right to unanimity but a different majority concluded that the right did not apply to the States. See *ante*, at 93–96.

I would accept petitioner’s invitation to decide this case under the Privileges or Immunities Clause. The Court conspicuously avoids saying which Clause it analyzes. See, *e. g.*, *ante*, at 88–89, 93. But one assumes from its silence that the Court is either following our due process incorporation precedents or believes that “nothing in this case turns on”

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which Clause applies, *Timbs*, *supra*, at 157 (GORSUCH, J., concurring).

I have already rejected our due process incorporation cases as demonstrably erroneous, and I fundamentally disagree with applying that theory of incorporation simply because it reaches the same result in the case before us. Close enough is for horseshoes and hand grenades, not constitutional interpretation. The textual difference between protecting “citizens” (in the Privileges or Immunities Clause) and “person[s]” (in the Due Process Clause) will surely be relevant in another case. And our judicial duty—not to mention the candor we owe to our fellow citizens—requires us to put an end to this Court’s due process prestidigitation, which no one is willing to defend on the merits.

I would simply hold that, because all of the opinions in *Apodaca* addressed the Due Process Clause, its Fourteenth Amendment ruling does not bind us because the proper question here is the scope of the Privileges or Immunities Clause. I cannot understand why the Court, having decided to abandon *Apodaca*, refuses to correctly root its holding in the Privileges or Immunities Clause.¹

III

There is no need to prove the original meaning of the Sixth Amendment right to a trial by jury in this case.² The evi-

¹ I also note that, under my approach to *stare decisis*, there is no need to decide which reliance interests are important enough to save an incorrect precedent. I doubt that this question is susceptible of principled resolution in this case, compare *ante*, at 107–111 (principal opinion), with *ante*, at 113–114 (SOTOMAYOR, J., concurring); *ante*, at 129–131 (KAVANAUGH, J., concurring); and *post*, at 158–164 (ALITO, J., dissenting), or in any other case for that matter, see, e. g., *Kimble v. Marvel Entertainment, LLC*, 576 U.S. 446, 457–458 (2015); *Lawrence v. Texas*, 539 U.S. 558, 577 (2003); *Dickerson v. United States*, 530 U.S. 428, 443 (2000); *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U.S. 833, 855–856 (1992).

² Similarly, I express no view on how fundamental the right to unanimity is, what other attributes of a criminal jury are protected by the Privileges or Immunities Clause, what rights are protected in misdemeanor cases, or what rights are protected in civil trials.

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dence that I have recounted is enough to establish that our previous interpretations of the Sixth Amendment are not demonstrably erroneous. What is necessary, however, is a clear understanding of the means by which the Sixth Amendment right applies against the States. We should rely on the Privileges or Immunities Clause, not the Due Process Clause or the Fourteenth Amendment in some vague sense. Accordingly, I concur only in the judgment.

JUSTICE ALITO, with whom THE CHIEF JUSTICE joins, and with whom JUSTICE KAGAN joins as to all but Part III–D, dissenting.

The doctrine of *stare decisis* gets rough treatment in today's decision. Lowering the bar for overruling our precedents, a badly fractured majority casts aside an important and long-established decision with little regard for the enormous reliance the decision has engendered. If the majority's approach is not just a way to dispose of this one case, the decision marks an important turn.

Nearly a half century ago in *Apodaca v. Oregon*, 406 U. S. 404 (1972), the Court held that the Sixth Amendment permits non-unanimous verdicts in state criminal trials, and in all the years since then, no Justice has even hinted that *Apodaca* should be reconsidered. Understandably thinking that *Apodaca* was good law, the state courts in Louisiana and Oregon have tried thousands of cases under rules that permit such verdicts. But today, the Court does away with *Apodaca* and, in so doing, imposes a potentially crushing burden on the courts and criminal justice systems of those States. The Court, however, brushes aside these consequences and even suggests that the States should have known better than to count on our decision.

To add insult to injury, the Court tars Louisiana and Oregon with the charge of racism for permitting non-unanimous verdicts—even though this Court found such verdicts to be

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constitutional and even though there are entirely legitimate arguments for allowing them.

I would not overrule *Apodaca*. Whatever one may think about the correctness of the decision, it has elicited enormous and entirely reasonable reliance. And before this Court decided to intervene, the decision appeared to have little practical importance going forward. Louisiana has now abolished non-unanimous verdicts, and Oregon seemed on the verge of doing the same until the Court intervened.¹

In Part II of this opinion, I will address the surprising argument, advanced by three Justices in the majority, that *Apodaca* was never a precedent at all, and in Part III, I will explain why *stare decisis* supports retention of that precedent. But before reaching those issues, I must say something about the rhetoric with which the majority has seen fit to begin its opinion.

I

Too much public discourse today is sullied by *ad hominem* rhetoric, that is, attempts to discredit an argument not by proving that it is unsound but by attacking the character or motives of the argument's proponents. The majority regrettably succumbs to this trend. At the start of its opinion, the majority asks this rhetorical question: "Why do Louisiana and Oregon allow nonunanimous convictions?" *Ante*, at 87. And the answer it suggests? Racism, white supremacy, the Ku Klux Klan. *Ante*, at 87–88. Non-unanimous verdicts, the Court implies, are of a piece with Jim Crow laws, the poll tax, and other devices once used to disfranchise African-Americans. *Ibid.*

If Louisiana and Oregon originally adopted their laws allowing non-unanimous verdicts for these reasons,² that is

¹ See Brief for State of Oregon as *Amicus Curiae* 1–2.

² Both States resist this suggestion. See Brief for Respondent 36–39; Brief for State of Oregon as *Amicus Curiae* 6–8.

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deplorable, but what does that have to do with the broad constitutional question before us? The answer is: nothing.

For one thing, whatever the reasons why Louisiana and Oregon originally adopted their rules many years ago, both States readopted their rules under different circumstances in later years. Louisiana’s constitutional convention of 1974 adopted a new, narrower rule, and its stated purpose was “judicial efficiency.” *State v. Hankton*, 2012–0375, p. 19 (La. App. 4 Cir. 8/2/13), 122 So. 3d 1028, 1038. “In that debate no mention was made of race.” *Ibid.*; 7 Records of the Louisiana Constitutional Convention of 1973: Convention Transcripts 1184–1189 (La. Constitutional Convention Records Comm’n 1977). The people of Louisiana ratified the new Constitution. The majority makes no effort to show either that the delegates to the constitutional convention retained the rule for discriminatory purposes or that proponents of the new Constitution made racial appeals when approval was submitted to the people. The same is true for Oregon’s revisions and reenactments. Ore. Const., Art. I, § 11 (amended May 18, 1934); Ore. Rev. Stat. § 136.450 (1997); § 136.610 (1971).

The more important point, however, is that today’s decision is not limited to anything particular about Louisiana or Oregon. The Court holds that the Sixth Amendment requires jury unanimity in *all* state criminal trials. If at some future time another State wanted to allow non-unanimous verdicts, today’s decision would rule that out—even if all that State’s lawmakers were angels.

For this reason, the origins of the Louisiana and Oregon rules have no bearing on the broad constitutional question that the Court decides. That history would be relevant if there were no legitimate reasons why anyone might think that allowing non-unanimous verdicts is good policy. But that is undeniably false.³

³ Among other things, allowing non-unanimous verdicts prevents mistrials caused by a single rogue juror, that is, a juror who refuses to pay attention at trial, expressly defies the law, or spurns deliberation. When

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Some years ago the British Parliament enacted a law allowing non-unanimous verdicts.⁴ Was Parliament under the sway of the Klan? The Constitution of Puerto Rico permits non-unanimous verdicts.⁵ Were the framers of that Constitution racists? Non-unanimous verdicts were once advocated by the American Law Institute and the American Bar Association.⁶ Was their aim to promote white supremacy? And how about the prominent scholars who have taken the same position?⁷ Racists all? Of course not. So all the talk about the Klan, etc., is entirely out of place.⁸ We

unanimity is demanded, the work of preventing this must be done in large measure by more intensive *voir dire* and more aggressive use of challenges for cause and peremptory challenges. See Amar, Reinventing Juries: Ten Suggested Reforms, 28 U. C. D. L. Rev. 1169, 1189–1191 (1995).

⁴Juries Act 1974, ch. 23, § 17 (replacing Criminal Justice Act 1967, ch. 80, § 13). See Lloyd-Bostock & Thomas, Decline of the “Little Parliament”: Juries and Jury Reform in England and Wales, 62 Law & Contemp. Prob. 7, 36 (Spring 1999); see also Leib, A Comparison of Criminal Jury Decision Rules in Democratic Countries, 5 Ohio St. J. Crim. L. 629, 642 (2008).

⁵P. R. Const., Art. II, § 11 (establishing “verdict by a majority vote” of at least 9 of 12 jurors).

⁶ALI, Code of Criminal Procedure § 355 (1930); *id.*, Comment, at 1027; ABA Project on Standards for Criminal Justice Compilation, Trial by Jury 318 (1974).

⁷See, e.g., Amar, *supra*, at 1189–1191; Holland, Improving Criminal Jury Verdicts: Learning From the Court-Martial, 97 J. Crim. L. & C. 101, 125–141 (2006); Leib, Supermajoritarianism and the American Criminal Jury, 33 Hastings Const. L. Q. 141, 142 (2006).

⁸The majority’s defense of its reliance on the original reasons for the adoption of the Louisiana and Oregon rules is incoherent. On the one hand, it asks: “[I]f the Sixth Amendment calls on judges to assess the functional benefits of jury rules, as the *Apodaca* plurality suggested, how can that analysis proceed to ignore the very functions those rules were adopted to serve?” *Ante*, at 99, n. 44. But three sentences later it answers its own question when it observes that “a jurisdiction adopting a nonunanimous jury rule for benign reasons would still violate the Sixth Amendment.” *Ibid.*

JUSTICE KAVANAUGH’s defense, see *ante*, at 127–129 (opinion concurring in part), is essentially the same. After reiterating the history recounted by the majority, he eventually acknowledges that there are “neutral and

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should set an example of rational and civil discourse instead of contributing to the worst current trends.

II

Now to what matters.

A

I begin with the question whether *Apodaca* was a precedent at all. It is remarkable that it is even necessary to address this question, but in Part IV–A of the principal opinion, three Justices take the position that *Apodaca* was never a precedent. The only truly fitting response to this argument is: “Really?”

Consider what it would mean if *Apodaca* was never a precedent. It would mean that the entire legal profession was fooled for the past 48 years. Believing that *Apodaca* was a precedent, the courts of Louisiana and Oregon tried thousands of cases under rules allowing conviction by a vote of 11 to 1 or 10 to 2, and appellate courts in those States upheld these convictions based on *Apodaca*.⁹ But according to three Justices in the majority, these courts were deluded.

legitimate” reasons for allowing non-unanimous verdicts and that Louisiana may have retained a version of its old rule for such reasons. He also agrees with the majority that a rule allowing non-unanimous verdicts would be unconstitutional no matter what the State’s reasons. So what is the relevance of the original motivations for the Louisiana and Oregon rules? He offers no explanation. He does opine that allowing such verdicts works to the disadvantage of African-American defendants, but the effect of various jury decision rules is a complex question that has been the subject of much social-science research, none of which the opinion even acknowledges.

⁹For Oregon, see, *e. g.*, *State v. Bowen*, 215 Ore. App. 199, 168 P. 3d 1208 (2007), rev. denied, 345 Ore. 415, 197 P. 3d 1104 (2008), cert. denied, 558 U. S. 815 (2009); *State v. Mayo*, 13 Ore. App. 582, 511 P. 2d 456 (1973). For Louisiana, see, *e. g.*, *State v. Hodges*, 349 So. 2d 250, 260 (La. 1977), cert. denied, 434 U. S. 1074 (1978); see also *State v. Miller*, 2010–718, pp. 42–43 (La. App. 5 Cir. 12/28/11), 83 So. 3d 178, 204, writ denied, 2012–0282 (La. 5/18/12), 89 So. 3d 119, cert. denied, 568 U. S. 1157 (2013); *State v. McElveen*, 2010–0172, pp. 95–96 (La. App. 4 Cir. 9/28/11), 73 So. 3d 1033, 1092, writ denied, 2011–2567 (La. 4/19/12), 85 So. 3d 692, cert. denied, 568 U. S. 1163 (2013).